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December 10, 2019

**BY E-MAIL
AND FIRST CLASS MAIL**

Ms. Rachel E. Dickon
Acting Secretary
Federal Maritime Commission
Room 1046
800 North Capitol Street, NW
Washington, DC 20573

**RE: Docket No. 15-11
Igor Ovchinnikov, et al. v. Michael Hitrinov, et al.**

Dear Ms. Dickon:

Enclosed for filing in the above-captioned matter are an original true copy and five (5) additional copies of:

1. Respondents' Response to Complainants' Fifth Unauthorized Sur-Reply

If you have any questions, please do not hesitate to contact me.

Best regards,


Eric C. Jeffrey
Counsel

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

DOCKET NO. 15-11

IGOR OVCHINNIKOV, ET AL

v.

MICHAEL HITRINOV ET AL

Consolidated With
DOCKET NO. 1953(I)

KAIRAT NURGAZINOV, ET AL

v.

MICHAEL HITRINOV ET AL

RESPONDENTS' RESPONSE TO COMPLAINANTS'
FIFTH UNAUTHORIZED SUR-REPLY

Like clockwork, the due date for the Commission's decision nears, and Complainants lob in yet another unauthorized filing – in this case a fifth sur-reply and purported evidence in the guise of a status report. Respondents have already addressed multiple times why unchecked and unauthorized filings outside the rules sap the integrity of Commission proceedings and impose significant financial burdens on litigants who are paying legal bills, and do not propose to re-plow fallow ground. Complainants' current filing could, and should, be simply written off as a farce. But because Respondents are troubled by the persistent failure of Complainants' Counsel to pay any heed to the FMC Rules, they make a few, brief comments.

Rule 6(a) provides:

“The signature of a person admitted or qualified to practice before the Commission constitutes a certificate by the signer that the signer has read the pleading, document or paper; that the signer is authorized to file it; that to the best of the signer's knowledge, information, and belief formed after reasonable inquiry, the filing is well grounded in fact and is warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law; and that it is not interposed for any improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation. For a willful violation of this section, a person admitted or qualified to practice before the Commission may be subjected to appropriate disciplinary action.”

Although Complainant's Counsel did not actually sign the latest “Status Report” in accordance with the Rules, we assume that an electronic signature suffices to subject the signer to the above obligation. The instant pleading does not come near to meeting the demands of Rule 6(a), as it is plainly misleading and interposed for no legitimate purpose.¹ Only a few observations are needed to prove this point:

- The “Status Report” says it is filed “to make the Commission aware of changes in status.” P. 1. But the matter raised – a decision by a Finnish Prosecutor to “discontinue” a pre-trial investigation for lack of evidence – is from February **2015** -- almost 5 years ago, and long before the complaints were even filed. Further, the distribution list (on page 2) indicates that a copy of the discontinuation decision was provided to Mr. Ovchinnikov in 2015, so he, and by extension Complainants' Counsel, have always had this document available if they thought it useful. Apparently they did not (and for good reason).
- Complainants allege that certain statements in the decision to terminate the investigation are relevant to the current matter. But as even a cursory reading shows, those statements do not reflect any investigation or conclusion by the initial investigating officer, but rather, are in the nature of a witness statement – parroting what Mr. Ovchinnikov told the investigator.²
- Complainants omit to mention, although focusing on a small phrase in the quote, that the prosecutor, in dismissing the investigation, specifically said in the last paragraph:

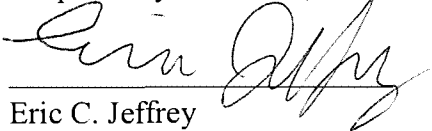
¹ We also note that Appendix A is illegible in both languages, but do not press the point, as it is entirely irrelevant.

² Given that the source of all the commentary was Mr. Ovchinnikov, Complainants are also wrong in asserting that his statements should be credited toward other complainants as well.

“If the pre-trial investigation were to be continued and the matter be brought to evaluation of charges, I would make the decision *not to prosecute* the matter with respect to Hitrinov, who acted on behalf of Oy Carcont Ltd. in Finland,³ on the grounds that *no sufficient proof of an offence* has been presented in the pre-trial investigation to support the bringing of a charge *nor of the involvement of Hitrinov* in a possible act of deceit.”⁴

- Complainants continue to raise dead issues, already decided adversely to Respondents and not excepted from. For example, as with past unauthorized filings, Complainants argue that Respondents acted as an NVOCC, not as an “owner” of the vehicles. As previously explained, that question is no longer in dispute – it was decided against Respondents by the Presiding Officer, and Respondents have taken no exception thereto. Obviously Complainants are simply trying to obfuscate matters.
- Finally, Complainants make the bizarre suggestion that Respondents should have disclosed the decision to terminate the investigation in the proceeding below. They fail to identify, however, on what basis this declination of investigation ought to have been disclosed, and given that, when read as a whole, it is quite favorable to Respondents, Complainants should be thankful it was not brought forward. And as noted above, this document was apparently distributed to Mr. Ovchinnikov, so available to Complainants Counsel since 2015.

Respectfully submitted,



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Dated: December 10, 2019

³ This assertion about Mr. Hitrinov representing CarCont Ltd. is, like the rest, based on Mr. Ovchinnikov’s complaint, rather than any independent investigation, and is in any event wrong.

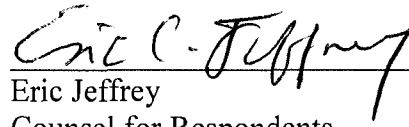
⁴ Complainants likewise ignore that the investigating officer himself proposed termination of the pre-trial investigation. Obviously, neither he nor the prosecutor we impressed by what Mr. Ovchinnikov had to say.

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing Respondents' Response to Complainants' Fifth Unauthorized Sur-Reply by U.S. Mail, First-Class, Postage Prepaid and E-Mail to the following:

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Date: December 10, 2019


Eric Jeffrey
Counsel for Respondents